

M/S Shree Ganpati Electricals v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Lucknow Bench, Division Bench · 28 June 2024 · Writ - C No. 5667 of 2024 · **Interim temporary connection under clause 4.10; writ listed**

HEADNOTE

On a writ against refusal of a fresh shop connection for premises dues under clauses 4.3 and 4.4 of the Electricity Supply Code, 2005, the Court, prima facie treating one of three independent shops as a separate premise, directed respondent no. 2 to give a temporary connection under clause 4.10 within 24 hours of an application made in two working days, and listed the petition.

FACTUAL SUMMARY

M/S Shree Ganpati Electricals took a vacant shop at S1-1396, Suraksha Enclave, Saheed Path, Lucknow and applied to Madhyanchal Vidyut Vitran Nigam Ltd. for a fresh connection. On 3 June 2024 the application was rejected for premises dues under clauses 4.3 and 4.4 of the Electricity Supply Code, 2005. The petitioner said the address held three independent shops, two with separate running connections. The licensee produced a bill of Rs.2,68,659 dated 27 February 2021 on account no. 8690847573; the notice recorded that the other shop's bill had been paid.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.10

interim temporary connection

HOLDING

As an interim measure, if the petitioner applies within two working days, respondent no. 2 shall provide a temporary electricity connection within 24 hours under clause 4.10 of the Electricity Supply Code, 2005, in accordance with law. ¶ 7

FLAG Cited as clause 4.10 without a sub-clause; not matched to 4.10(a) or 4.10(e).

PRINCIPLE TAGS

clause-4.10-interim-temporary-connection While the challenge to refusal of a fresh connection under clauses 4.3 and 4.4 remained pending, the Court directed a temporary connection under clause 4.10 within 24 hours of an application filed within two working days. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSES 4.3 AND 4.4 BAR A FRESH CONNECTION TO ONE INDEPENDENT SHOP BECAUSE DUES REMAIN AGAINST OTHER SHOPS AT THE SAME ADDRESS

Only a prima facie view was recorded that the shop was a separate premise. Counter-affidavit and rejoinder were called, and the writ was listed on 8 August 2024. ¶ 5-8